

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MAURICIO VARELA,

Petitioner

VS.

SVETLANA GOGOLITSYN,

Respondent

) Case Number: FLD-25-397265

) Hearing Date: August 18, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF CHILD CUSTODY, VISITATION
(PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Mauricio Varela (Father) and Respondent Svetlana Gogolitsyn (Mother) have one minor child together, Mars (DOB 2/19/2014, age 12). Father suffered a severe traumatic brain injury in 2016 and is under a conservatorship. In an order filed 2/21/2025, the juvenile court awarded sole legal and physical custody to Father “on the condition that either the paternal grandmother, Vanessa Carias, or the paternal uncle, Marco Meza, is present with the minor at all times.” The juvenile court suspended Mother's visits after making a detriment finding and ordered that Mother may attempt to rebut the detriment finding and resume visits “on the condition that she engage in individual therapy for 6 months, complete a substance use assessment, and complete a parenting class.”
- 2) On for hearing is Mother's request for joint legal and physical custody with parenting time for Mother on Wednesday, Thursday and Fridays, and Sundays, Thanksgiving holiday and school break, Christmas and winter break, Mother's Day, Mother's birthday (9/22), and Mars's birthday

1 (2/19). She states she engaged in therapy from February to April 2025, completed a substance
2 abuse assessment during the dependency case, completed a parenting class, resumed weekly
3 individual therapy in March 2026, and is seeing a psychiatrist. She states she is employed as a
4 shopper for Instacart. She states the paternal grandmother and uncle have been supportive of her
5 effort to maintain contact with Mars and that she has visited Mars regularly, with the grandmother
6 and/or uncle present, since January 2026 for between 3 and 7 hours per visit.

7 3) Paternal grandmother Vanessa Carias (Grandmother) filed a declaration in which she states that
8 Mother has not completed an alcohol abuse treatment program and there is no evidence, such as a
9 psychological evaluation or a letter from a treating physician, that she no longer suffers from
10 mental illness or that she can safely parent Mars without supervision. She states that during visits,
11 Mother talks to herself and carries on conversations with individuals who are not present, as she
12 has done over the years Grandmother has known Mother. Grandmother states that during some
13 visits, Mother has spent 20 minutes with Mars before sleeping on the couch for 3 hours, and Mars
14 would say, "Oh my God, she's doing it again, she's talking to herself," and would ask when she
15 was leaving. Mother also tells Mars that she is taking him to Florida and has shown up to his
16 school multiple times and has tried to remove him from school. Grandmother expresses concern
17 about Mother's severely cluttered home and the fact that she states she is employed by Instacart
18 when she stated during recent child support proceedings that she is not employed. Grandmother
19 attaches various CPS and dependency court documents to her declaration and sets forth the case
20 history, including Mother's sister's suicide in Mother and Mars's home (Mars saw his aunt's dead
21 body), sexual abuse concerns, and Mother's threats to kill herself and Mars.

22 4) Paternal uncle Marco Meza (Uncle) has filed a declaration in which he states that he agreed to
23 supervise visits for Mother after she showed up at Mars's middle school unannounced. He states
24 that during visits, Mother continues to talk to herself and to others who are not there, sometimes
25 spends a significant amount of time on her cell phone instead of trying to rebuild her relationship
26 with Mars, and repeatedly pressures Mars to return home with her. Uncle states that Mars is doing
27 well and has been happy since moving in with him and Grandmother and that it is best for his
28 stability and wellbeing to have limited supervised visits with Mother.
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- 1 5) The parties attended mediation and were unable to reach an agreement. Grandmother and Uncle
2 requested supervised visits through Rally Family Visitation Center or facilitated by them. Mother
3 requested visits on Fridays from 4pm and Sundays from 10pm.

4 **B. Findings and Orders**

- 5 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
6 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
7 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
8 child is the United States.
- 9 2) The Court finds it is in Mars's best interest for Father to continue to have sole legal and physical
10 custody of Mars, with Grandmother or Uncle present. Beginning immediately, Mother shall have
11 one, 2-hour visit per week with Mars, supervised by Grandmother or Uncle, with the day and
12 time of the visit to be arranged for by the parties. If the parties are unable to reach an agreement
13 regarding the day or time of the visit, the visits shall take place every Friday from 5pm to 7pm.
- 14 3) All orders not in conflict with these orders shall remain in full force and effect.
- 15 4) The Court will prepare the Findings and Order After Hearing.
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